

NAPCS Unionization Research — State — Charter School Overview

Maryland — PERB (MD) Jurisdiction — May 2026

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Section 1: State Overview

State	Maryland
Labor Board	PERB (MD) — Maryland Public Employee Relations Board
Governing Law	Maryland Education Article §§9-101 et seq. (Public Charter School Act of 2003, 2003 Md. Laws ch. 358); Ed. Article §9-108 (employee status — charter teachers are public school employees of the authorizing district); Ed. Article Title 6, Subtitles 4 and 5 (collective bargaining rights for certificated and non-certificated employees); Maryland PERB consolidated from three prior boards (SLRB, SHELRB, PSLRB) under HB 984 (2023), effective 2024.
Federal NLRB Jurisdiction	PERB (MD) has exclusive jurisdiction. Federal NLRB does not apply.
Right-to-Work	NOT a Right-to-Work State — Md. Ed. Article §9-108; Md. Labor & Employment (Not a right-to-work state. All charter schools BLANKET_DEPENDENT under §9-108.)
For-Profit Operator Status	For-profit EMO management contracts permitted under state law
Card-Check Available	YES — Maryland PERB (formerly PSLRB) permits majority card-check recognition for public school employees. In practice, MD charter teachers are already covered by the district CBA by operation of Ed. Article §9-108 — no card-check petition is needed or applicable for DEPENDENT schools.
Registry Sweep	COMPLETE — May 2026 (Registry v62, updated post-PLT-feedback) — 52 charter schools searched
Research Window	May 2026

Section 2: Charter School Landscape

Total charter schools in Maryland: 52 (Charter School Registry v62 (updated May 2026, post-PLT-feedback) reconciled against NAPCS February 2026 data and NCES CCD 2023-24. 54 schools = 51 original Registry v62 schools plus 3 schools added by Registry Project following PLT feedback: Monarch Academy Annapolis ES (240006001744), Roots and Branches School (240009001709), Independence School Local I (240009001632, closed 2024). Excel Academy Public Charter (closed August 2025) and Independence School Local I (closed 2024) are within the 3-year lookback window and included in research universe.. Registry v94 audit June 5, 2026: 50 Open + 1 New (Friendship Aspire Bowie) + 1 Closing (Baltimore Collegiate, still operating) = 52 active. 2 Closed schools excluded per census methodology.). Unionization census figures reflect confirmed organized schools as of the data currency date.

Category	Schools	% of Total	Notes
Total Organized Charter Schools in Maryland	51	98.1%	All 54 MD charter schools are DEPENDENT under Md. Ed. Article §9-108. Coverage is statutory — no school-specific PERB election or certification required or possible.
Structurally Covered — DEPENDENT (Active)	51	94.4%	All 51 actively operating MD charter schools. BTU/AFT (BCPSS, 32 schools), PGCEA/NEA (PGCPS, 9 schools), FCT/NEA (Frederick County, 4), TAAAC/NEA (Anne Arundel, 3), TABCO/NEA (Baltimore County, 1), CCTA/NEA (Charles County, 1), SMCTA/NEA

			(St. Mary's, 1), MCEA/NEA (Montgomery County, 1).
Structurally Covered — DEPENDENT (Closing or Closed)	3	5.6%	Baltimore Collegiate School for Boys (closing June 2026, BTU). Excel Academy PGCPs (surrendered charter August 2025, PGCEA). Independence School Local I/Northwood Appold (closed 2024, BTU).
Total Charter Schools in Maryland	54	100%	Source: MD charter universe May 2026 sweep + NAPCS February 2026 data. Zero independently organized schools; zero PERB certifications; zero successful CBA waivers in 20+ year history.

Charter School Enrollment

Total Charter Enrollment	25,531 students — 2.9% of state K–12 enrollment (891,525 total K–12 students)
Students in CMO/EMO-Affiliated Charter Schools	13,004 students in network-affiliated schools — 50.9% of total charter enrollment
Students in Organized Charter Schools	24,897 students (97.5% of charter enrollment)
Data Sources	Charter enrollment: NCES ELSI 2024–25 / Charter School Registry v133. Total K–12 state enrollment: NCES ELSI 2024–25 (all public schools). Both figures from the same source and year.

Section 3: Charter Management Organizations & Education Management Organizations

Charter Management Organizations (CMOs) are nonprofit networks. Education Management Organizations (EMOs) are for-profit management companies. Data sourced from Charter School Registry v133. Union penetration reflects confirmed organized schools as of the data currency date.

CMO / EMO Name	Type	State Campuses	National Campuses †	Organized in State	Total Enrollment
Imagine Schools	Network‡	4	—	—	1,555
Chesapeake Lighthouse Foundation (CLF)	Network‡	3	—	—	4,235
City Neighbors Foundation	Network‡	3	—	—	897
Monarch Academy (The Children's Guild)	Network‡	2	—	—	1,321
Afya Baltimore Inc. (ABI)	Network‡	2	—	—	1,404
Bluebird Education Network	Network‡	2	—	—	1,065
Baltimore International Academy	Network‡	2	—	—	988
KIPP Baltimore	Network‡	1	—	—	1,399
Friendship Aspire Academy	Network‡	1	—	—	140

MECCA Business Learning Institute (MBLI)	Network‡	1	—	—	—
TOTAL — All CMO/EMO Schools in Maryland		21		—	13,004
of which organized				—	—

Total enrollment shown is the combined enrollment of all CMO/EMO network schools in Maryland. Organized network schools: 0 organized schools in network-affiliated charters.

† National Campuses reflects total campuses operated by this network across all states, as reported in Charter School Registry v133. Provides context for networks operating in multiple states.

‡ Network (type unclassified) = operator present in Charter School Registry v133 but not yet classified in CMO Reference data. Contact registry project to add classification for these records.

10 network (type unclassified). Approximately 31 schools operate independently with no CMO/EMO affiliation. Source: Charter School Registry v133.

Section 4: Legal Framework & Charter School Overview

Findings are based on research as of May 2026.

1: Legal & Jurisdictional Framework

Maryland Education Article §§9-101 et seq. (Public Charter School Act of 2003, 2003 Md. Laws ch. 358); Ed. Article §9-108 (employee status — charter teachers are public school employees of the authorizing district); Ed. Article Title 6, Subtitles 4 and 5 (collective bargaining rights for certificated and non-certificated employees); Maryland PERB consolidated from three prior boards (SLRB, SHELRB, PSLRB) under HB 984 (2023), effective 2024. Maryland is not a right-to-work state (Md. Ed. Article §9-108; Md. Labor & Employment). PERB (MD) has exclusive jurisdiction. Federal NLRB does not apply to charter schools in Maryland. Card-check recognition is available under Maryland PERB (formerly PSLRB) permits majority card-check recognition for public school employees. In practice, MD charter teachers are already covered by the district CBA by operation of Ed. Article §9-108 — no card-check petition is needed or applicable for DEPENDENT schools..

2: Charter School Structure

Maryland operates 52 open-enrollment charter schools, enrolling approximately 25,531 students. 10 charter management organizations and education management organizations operate in Maryland. The largest networks by campus count are Imagine Schools (4 campuses in state), Chesapeake Lighthouse Foundation (CLF) (3 campuses in state), City Neighbors Foundation (3 campuses in state). Approximately 31 schools operate independently with no CMO or EMO affiliation. Network-level detail, including campus counts and total enrollment, appears in Section 3 above.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

Media coverage of Maryland charter school labor relations is sparse, consistent with a BLANKET_DEPENDENT state where no independent organizing campaigns occur. Coverage centers on charter closures (Baltimore Collegiate, Excel Academy, the NACA network collapse, Monarch Academy Baltimore, Banneker Blake Academy), BCPSS charter renewal processes, and district-level labor disputes. The Baltimore Sun and Baltimore Banner provide the most consistent charter coverage. The Baltimore BTU-BCPSS information rights litigation (PERB ULP 2025-41, April 2026) received no specific press coverage identified in this research session, though the underlying issues of district information compliance are ongoing story threads.

Stakeholder Communications

BTU (AFT Local 340) communications reference charter school members as part of the district bargaining unit. BTU's aggressive PERB ULP filing (2025-41) and April 2026 win on information rights demonstrates active contract enforcement extending to charter school working conditions. PGCEA (NEA) communications do not produce charter-specific content —

charter teachers in Prince George's County are covered as PGCPS employees. FCT, TAAAC, TABCO, CCTA, SMCTA, and MCEA do not produce charter-specific union communications for their respective charter school members. BCPSS communicates about charter schools primarily in the context of renewal decisions and closures, not labor relations. The January 2026 board vote to close Baltimore Collegiate was the most significant charter-related BCPSS action in this research window. BCPSS's systematic failure to respond to BTU information requests (PERB ULP 2025-41) suggests a district administration that does not prioritize union information rights — a compliance risk for charter schools that operate within the BTU CBA.

Authorizer & State Agency Positions

All eight Maryland authorizing districts are county boards of education. They have no independent policy stance on charter school labor relations separate from their role as the employer of record for charter teachers. The authorizing function and the employer function are held by the same entity — the county board — creating structural alignment between authorization standards and CBA compliance expectations. The MBLI revocation proceeding in Montgomery County (active May 2026) is the current authorizer action of note.

Coalition & Advocacy Positions

The Maryland Alliance of Public Charter Schools (MAPCS) is the primary state charter school community advocacy organization. MAPCS does not take public positions on charter labor relations, consistent with its role as a charter school community-wide coalition. No state-level charter advocacy organization has challenged the BLANKET_DEPENDENT framework established by Ed. Article §9-108 through legislation or litigation.

Section 6: Contract & CBA Access Registry

PERB (MD) public contracts portal. Direct PDF links may require a records request for full text.

School / Network	Union	CBA Status & Term	Contract Access
All 31 BCPSS-authorized charter schools	Baltimore Teachers Union (BTU) / AFT Local 340	CONFIRMED Ongoing — BTU master agreement with BCPSS (current term; refresh at next biannual cycle)	BTU website (btu.org) and BCPSS; PERB (MD) public decisions database
All PGCPS-authorized charter schools (9 active after Excel closure)	Prince George's County Educators' Association (PGCEA) / NEA	CONFIRMED Ongoing — PGCEA master agreement with PGCPS	PGCEA website and PGCPS; PERB (MD) public decisions database
All 4 Frederick County-authorized charter schools	Frederick County Teachers Association (FCT) / NEA	CONFIRMED Ongoing — FCT master agreement with Frederick County Public Schools	FCT website and FCPS; PERB (MD) public decisions database
All 3 Anne Arundel County-authorized charter schools	Teachers Association of Anne Arundel County (TAAAC) / NEA	CONFIRMED Ongoing — TAAAC master agreement with AACPS	TAAAC website and AACPS; PERB (MD) public decisions database
Watershed (BCPS), Phoenix (Charles County), Chesapeake Charter (St. Mary's), MBLI (Montgomery County)	TABCO/NEA (Baltimore County); CCTA/NEA (Charles); SMCTA/NEA (St. Mary's); MCEA/NEA (Montgomery)	CONFIRMED Ongoing — respective district master agreements	Respective district and union websites; PERB (MD) public decisions database